

lease, estate, interest, or reversion, in respect whereof the money was paid, or as near thereto as may be.

Under this section it will be the duty of the trustee to take care upon a sale by the tenant for life of a lease-
[*566] hold interest, or a * reversion, that the proceeds of the sale are so dealt with as not to affect the relative interests of the tenant for life and remainderman (*a*). This section corresponds with the 74th section of the Lands Clauses Consolidation Act, 1845, and its construction will be regulated by the decisions under that Act (*b*). Thus, if the property is subject to a lease at a rent less than the income produced by the investment of the purchase-money the tenant for life will be entitled during the remainder of the term, for which the property was let, to a sum equal only to the rent, and the residue of the income should be accumulated at compound interest until the end of the term, after which the tenant for life will be entitled to the whole of the income including the income of the accumulations (*c*).

So, on the other hand, if the property sold was a lease for a short term, the tenant for life is entitled to receive an annuity of such an amount as will exhaust the proceeds of sale in the number of years which the lease had to run (*d*).

23. **Heirlooms.**—By sect. 37, sub-sect. (1), where personal chattels are settled on trust so as to devolve with land until a tenant in tail by purchase is born, or attains the age of twenty-one years, or so as otherwise to vest in some person becoming entitled to an estate of freehold of inheritance in the land, a tenant for life of the land may sell the chattels or any of them; and by sub-sect. (2), the money arising by the sale is to be capital money arising under the Act, and to be paid, invested, or applied, and otherwise dealt with in like manner in all respects as by the Act directed with respect to other capital money arising under the Act, or may be invested in the purchase of other chattels, of the same or

(*a*) See *Re Griffith's Will*, 49 L. Eq. 72; *Re Wilkes' Estate*, 16 Ch. D. T. N. S. 161. 597; *Cottrell v. Cottrell*, 33 W. R. 361;

(*b*) *Cottrell v. Cottrell*, 28 Ch. D. 28 Ch. D. 628.
628. (*d*) *Askew v. Woodhead*, 14 Ch.

(*c*) *Re Wootton's Estate*, 1 L. R. D. 27.
Eq. 589; *Re Mette's Estate*, 7 L. R.